

House of Lords

Study Guide



HOUSE OF LORDS

Agenda: Understanding Gender Bias in Legal Divorce and Asset Division

Global School of Science Model United Nations



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Letter from the Executive Board

If you have done MUNs in the past few years, chances are you have come across me or seen me at least once. I have been doing MUNs since 2016 and I don't intend for my MUN journey to come to an end anytime soon.

I have learned throughout the past years that experience is only a number and I wish to convey to you that whether you are a first timer or a person with MUN experiences in the triple digits, the chances of getting the best delegates does not change and I hope to ensure that not only do you learn about MUN and something new but also have fun and gain a new experience.

Talking about me, the one thing that I absolutely love are dogs and puppies. And as much as I would like to say they are my most favorite, they do fall short of first place (which is a secret). Some other things I love include: any and all fluffy animals like pandas, anime, Harry Potter, sitcoms like TBBT, HIMYM, Friends, etc, KPOP, KDRAMA, Manga, and many more. I also happen to play a bit of Fortnite, and want to learn many more things. One thing about me is I firmly believe that a jack of all trades is always better than a master of one, and wish to learn as many skills as I can throughout my life, and I hope to learn something new from you all as well.

Lastly I would like to say that all though we, the dais, are there to facilitate you, we are not people you need to fear, consider us your friends and feel free to ask us as many questions as you want and we will answer to the best of our abilities.

Lastly, my goal is to create an environment where we can have fun and find creative resolutions to the topic that we at House of the lords have chosen this year. Let's make this House of the Lords committee one for the history books. Hope to have a great time with you all this spring!

Sincerely,
Rosis K.C.
Liaison

Introduction To The Committee

Welcome to the House of Lords Committee for GSSMUN 2025. The House of Lords serves as the upper chamber of the United Kingdom's Parliament and plays a vital role in examining, revising, and shaping legislation. Unlike the elected House of Commons, the House of Lords is composed of appointed members, including life peers, bishops, and hereditary peers, whose experience and expertise contribute to thoughtful and informed legislative scrutiny. Although its members are not elected by the public, the House of Lords remains essential in ensuring that laws are fair, balanced, and just.

Throughout history, the House of Lords has been deeply involved in major legal and social reforms, particularly in matters concerning family law, property rights, and social justice. One of its most significant roles has been in reviewing and influencing legislation related to marriage, divorce, and the division of assets. These debates often reflected broader societal attitudes toward gender roles, economic dependency, and legal equality, making the House of Lords a critical forum for examining issues of gender bias within the legal system.

In this committee, delegates will address the agenda **“Understanding Gender Bias in Legal Divorce and Asset Division.”** The focus will be on how historical and legal frameworks have often disadvantaged one gender, particularly on women in matters of divorce settlements, property ownership, and financial security. Delegates will analyze how traditional norms, legal precedents, and economic structures have shaped unequal outcomes within divorce proceedings.

Discussions will explore the evolution of divorce laws, the treatment of marital assets, and the assumptions made about gender roles in marriage and family life. Delegates will be expected to consider both legal principles and social realities, debating reforms that aim to promote fairness, equality, and justice within the legal system.

The objective of this committee is not only to examine gender bias within divorce and asset division laws but also to understand their broader implications for social equality and human rights. Delegates are encouraged to research thoroughly, present well-reasoned arguments, and engage actively in debate, as they work toward solutions that reflect equity and justice in legal decision-making.

Background and Context

The Committee: The House of Lords

The House of Lords is one of the two chambers of the United Kingdom's Parliament and functions primarily as a body of revision and reflection. While the House of Commons holds primary legislative authority, the House of Lords scrutinizes, amends, and improves proposed legislation. Its members are appointed based on experience in fields such as law, economics, social policy, and public service, allowing for informed and detailed debate.

Historically, the House of Lords has often reflected traditional and conservative perspectives, particularly regarding family structures and gender roles. However, it has also played an important role in advancing legal reforms by questioning outdated norms and addressing inequalities within the legal system. This dual role makes it a crucial institution for examining issues of gender bias in family and divorce law.

The Agenda: Understanding Gender Bias in Legal Divorce and Asset Division

Divorce law has long been shaped by social assumptions about marriage, gender roles, and economic responsibility. Historically, legal systems often favored men in matters of property ownership and financial control, while women were economically dependent and legally disadvantaged. These imbalances were reflected in divorce settlements, asset division, and child custody decisions.

Although significant legal reforms have taken place, gender bias continues to exist in various forms. Unequal access to financial resources, unpaid domestic labor, and assumptions about caregiving roles often influence court decisions and legal outcomes. This committee will examine how such biases manifest in divorce proceedings and asset division, both historically and in modern legal frameworks.

Key Areas of Discussion

1. Historical Foundations of Gender Bias in Divorce Law

Early divorce laws were heavily influenced by patriarchal norms, granting men greater legal and economic authority within marriage. Property laws often excluded women from ownership, leaving them financially vulnerable after divorce.

2. Economic Inequality and Asset Division

Delegates will examine how income disparity, unpaid household labor, and caregiving responsibilities affect asset division. The committee will explore whether existing legal frameworks adequately recognize non-monetary contributions within marriage.

3. The Role of the House of Lords in Legal Reform

The House of Lords has historically reviewed and influenced reforms in family law. Delegates will analyze how the Lords can act as a corrective body to identify bias, protect vulnerable parties, and promote equitable legal outcomes.

4. Social Impact and Modern Implications

Gender bias in divorce law has long-term consequences for economic stability, child welfare, and gender equality. Understanding these effects is essential for creating laws that uphold fairness and human rights.

Roles of the House of Lords (Agenda-Specific)

1. Legislative Review and Scrutiny:

Review divorce and family law legislation to identify legal loopholes, biases, and inequities in asset division.

2. Holding the Government to Account: Question government policies and legal standards related to family law, gender equality, and financial justice.

3. Expertise and Independent Judgment: Apply legal, economic, and social expertise to assess how divorce laws affect different genders.

4. Revising and Initiating Legislation: Propose reforms to divorce laws that promote equitable asset division and eliminate systemic bias.

5. Representing Interests and Minorities: Advocate for individuals disproportionately affected by biased divorce laws, including women and economically dependent spouses.

6. Constitutional and Legal Matters: Ensure divorce legislation aligns with principles of equality, fairness, and

the rule of law.

7. Debating Ethical and Moral Issues: Engage in ethical debates regarding fairness, caregiving responsibilities, and financial justice in marriage dissolution.

8. International Comparisons and Legal Standards: Examine divorce laws from other legal systems to identify best practices and equitable models.

QABMA (Questions a Bill Must Answer) 1. How

does the bill address gender bias in divorce proceedings and asset division? 2. What

measures ensure fair recognition of unpaid domestic and caregiving labor? 3. How

does the bill promote economic fairness for both parties after divorce? 4. What

safeguards exist to protect financially vulnerable spouses?

5. How does the bill align with broader principles of gender equality and human rights?